

JAZZ PHARMACEUTICALS IRELAND LIMITED et al v. QILU PHARMACEUTICAL (HAINAN) CO., LTD. et al

Plaintiff:	JAZZ PHARMACEUTICALS IRELAND LIMITED and PHARMA MAR, S.A.
Defendant:	QILU PHARMACEUTICAL (HAINAN) CO., LTD. and QILU PHARMA, INC.
Case Number:	1:2026cv07840
Filed:	June 26, 2026
Court:	U.S. District Court for the District of New Jersey
Nature of Suit:	Patent - Abbreviated New Drug Application(ANDA)
Cause of Action:	35 U.S.C. § 271 Patent Infringement
Jury Demanded By:	None

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Docket Report

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Date Filed	Document Text
June 26, 2026	Filing 2 Corporate Disclosure Statement by JAZZ PHARMACEUTICALS IRELAND LIMITED, PHARMA MAR, S.A.. (LIZZA, CHARLES)
June 26, 2026	Filing 1 COMPLAINT against QILU PHARMA, INC., QILU PHARMACEUTICAL (HAINAN) CO., LTD. (Filing and Admin fee \$ 405 receipt number ANJDC-17590091) , Related Case Selected, filed by JAZZ PHARMACEUTICALS IRELAND LIMITED, PHARMA MAR, S.A.. (Attachments: #1 Civil Cover Sheet) (LIZZA, CHARLES)

. Executive Summary and Procedural Information

Parties & Counsel:
Plaintiff: Jazz Pharmaceuticals Ireland Limited (Ireland) and Pharma Mar, S.A. (Spain)
Defendant: Qilu Pharmaceutical (Hainan) Co., Ltd. (China) and Qilu Pharma, Inc. (Pennsylvania)
Plaintiff's Counsel: Saul Ewing LLP

Case Name:	Jazz Pharmaceuticals Ireland Limited v. Qilu Pharmaceutical (Hainan) Co., Ltd.
Case Identification:	1:26-cv-07840 , D.N.J., 06/26/2026
Venue Allegations:	Venue is alleged to be proper in the District of New Jersey because Defendant Qilu Pharma, Inc. has an established place of business and employees in the state. For Defendant Qilu Pharmaceutical (Hainan) Co., Ltd., a foreign corporation, venue is alleged to be proper in any judicial district. Additionally, Plaintiffs allege both defendants have previously submitted to the jurisdiction of this Court in other matters.
Core Dispute:	Plaintiffs allege that Defendants' submission of an Abbreviated New Drug Application (ANDA) to the FDA for a generic version of the cancer drug Zepzelca® (lurbinectedin) constitutes an act of infringement of three U.S. patents covering specific methods for treating small cell lung cancer (SCLC).
Technical Context:	The technology concerns specific clinical protocols for administering the chemotherapy drug lurbinectedin to treat metastatic SCLC, focusing on dose-reduction regimens to manage severe, life-threatening toxicities such as hepatotoxicity, neutropenia, and thrombocytopenia.
Key Procedural History:	This is a Hatch-Waxman action filed under 35 U.S.C. § 271(e)(2), triggered by Defendants' submission of ANDA No. 221419 seeking to market a generic version of lurbinectedin. The patents-in-suit are listed in the FDA's "Approved Drug Products with Therapeutic Equivalence Evaluations" (the Orange Book) for Zepzelca®. The complaint was filed within 45 days of Plaintiffs' receipt of Defendants' notice letter dated May 13, 2026, which included a Paragraph IV certification challenging the patents.

Case Timeline

Date	Event
2019-11-21	Earliest Priority Date for '806 , '890 , and '490 Patents
2020-06-15	FDA grants accelerated approval for Zepzelca® (lurbinectedin)
2025-06-10	U.S. Patent No. 12,324,806 ('806 Patent) Issues
2025-10-02	FDA approves Zepzelca® in combination therapy
2025-10-07	U.S. Patent No. 12,433,890 ('890 Patent) Issues
2025-10-14	U.S. Patent No. 12,440,490 ('490 Patent) Issues
2026-05-13	Defendants send Qilu Notice Letter to Plaintiffs
2026-06-26	Complaint Filed

II. Technology and Patent(s)-in-Suit Analysis

U.S. Patent No. 12,324,806 - Method of Treating SCLC and Managing Hepatotoxicity

Patent Identification: U.S. Patent No. 12,324,806, "Method of Treating SCLC and Managing Hepatotoxicity," issued June 10, 2025. Compl. ¶27

The Invention Explained

Problem Addressed: The patent addresses the challenge of treating patients with metastatic small cell lung cancer (SCLC) whose disease has progressed after initial platinum-based chemotherapy. While the drug lurbinectedin is an effective treatment for this population, it can cause severe hepatotoxicity (liver toxicity), which may force discontinuation of the therapy. '806

Patent, col. 2:1-13 '806 Patent, col. 8:20-29

The Patented Solution: The patent claims a specific method for managing this toxicity. The method involves administering a standard 3.2 mg/m² dose of lurbinectedin. If a patient subsequently experiences a severe (Grade ≥3) hepatotoxic event, the treatment protocol calls for administering a reduced dose of 2.6 mg/m² in the next cycle, provided the patient's blood counts and liver function have recovered to safe levels. '806 Patent, abstract '806 Patent, col. 4:1-12 This dose-adjustment strategy allows for continued treatment while mitigating a dangerous side effect.

Technical Importance: This specific dosing regimen provides a clinically-tested protocol to keep patients on a life-extending therapy that might otherwise be stopped due to unmanageable toxicity. '806 Patent, col. 15:52-66

Key Claims at a Glance

- The complaint asserts infringement of at least Claim 1. Compl. ¶¶55-56
- Independent Claim 1 of the '806 Patent requires:
 - A method of treating metastatic SCLC in a patient with disease progression after platinum-based chemotherapy.
 - Administering a reduced dose of 2.6 mg/m² of lurbinectedin within 35 days of receiving an initial 3.2 mg/m² dose.
 - The patient must have previously experienced ≥ Grade 3 hepatotoxicity after the 3.2 mg/m² dose.
 - At the time of the reduced dose administration, the patient must have: (a) metastatic SCLC, (b) a platelet count of at least 100,000/mm³, (c) an absolute neutrophil count of at least 1500 cells/mm³, and (d) ≤ Grade 1 hepatotoxicity.
- The complaint reserves the right to assert infringement of other claims of the patent. Compl. ¶53

U.S. Patent No. 12,433,890 - Method of Treating SCLC and Managing Neutropenia

Patent Identification: U.S. Patent No. 12,433,890, "Method of Treating SCLC and Managing Neutropenia," issued October 7, 2025. Compl. ¶30

The Invention Explained

❑ **Problem Addressed:** This patent addresses a different but equally serious toxicity associated with lurbinectedin treatment: neutropenia, a condition characterized by an abnormally low count of neutrophils (a type of white blood cell). Severe (Grade 4) neutropenia or febrile neutropenia can lead to life-threatening infections and treatment cessation. '890

Patent, col. 4:13-20 '890 Patent, col. 8:20-29

❑ **The Patented Solution:** The invention provides a method analogous to that of the '806 Patent, but tailored for neutropenia. If a patient on a 3.2 mg/m² dose of lurbinectedin experiences Grade 4 neutropenia or any grade of febrile neutropenia, the patent claims a method of administering a subsequent, reduced dose of 2.6 mg/m² after the patient's blood counts have recovered. '890 Patent, abstract '890 Patent, col. 4:13-30

❑ **Technical Importance:** The claimed method provides a specific, proactive strategy to manage a common and dangerous hematological side effect, thereby improving the safety profile of lurbinectedin and allowing for continued therapy in responsive patients. '890 Patent, col. 15:52-66

Key Claims at a Glance

❑ The complaint asserts infringement of at least Claim 1. Compl. ¶¶70-71

❑ Independent Claim 1 of the '890 Patent requires:

❑ A method of treating metastatic SCLC in a patient with disease progression after platinum-based chemotherapy.

❑ Administering a reduced dose of 2.6 mg/m² of lurbinectedin within 35 days of receiving an initial 3.2 mg/m² dose.

❑ The patient must have previously experienced Grade 4 neutropenia or any grade febrile neutropenia after the 3.2 mg/m² dose.

❑ At the time of the reduced dose administration, the patient must have: (a) metastatic SCLC, (b) a platelet count of at least 100,000/mm³, and (c) an absolute neutrophil count of at least 1500 cells/mm³.

❑ The complaint reserves the right to assert infringement of other claims of the patent. Compl. ¶68

U.S. Patent No. 12,440,490 - Method of Treating SCLC and Managing Thrombocytopenia

❑ **Patent Identification:** U.S. Patent No. 12,440,490, "Method of Treating SCLC and Managing Thrombocytopenia," issued October 14, 2025. Compl. ¶33

❑ **Technology Synopsis:** This patent addresses lurbinectedin-induced thrombocytopenia, a condition of dangerously low platelet counts. The patent claims a method for treating SCLC patients wherein a patient who experiences Grade 3 thrombocytopenia with bleeding or Grade 4 thrombocytopenia after a 3.2 mg/m² dose is subsequently treated with a reduced 2.6 mg/m² dose, contingent on the patient's blood counts recovering to specified levels. '490 Patent, abstract Compl. ¶34 Compl. ¶85

❑ **Asserted Claims:** The complaint asserts infringement of at least Claim 1. Compl. ¶¶85-86

❑ **Accused Features:** The complaint alleges that the proposed product labeling for Qilu's generic lurbinectedin will instruct medical professionals to implement the specific dose reduction from 3.2 mg/m² to 2.6 mg/m² for patients who experience the claimed levels of thrombocytopenia. Compl. ¶¶87-88

III. The Accused Instrumentality

Product Identification: The accused instrumentality is Defendants' generic lurbinectedin for injection, 4 mg/vial, for which they seek FDA approval via Abbreviated New Drug Application (ANDA) No. 221419. [Compl. ¶¶9-10](#) [Compl. ¶38](#) The complaint refers to this as "Qilu's Generic Product." [Compl. ¶38](#)

Functionality and Market Context:

The infringement allegation is not directed at the chemical composition of the drug itself, but is a "method of use" claim triggered by the filing of the ANDA. The act of infringement is the submission of the ANDA seeking approval to market the drug for an indication claimed in the patents before their expiration. [Compl. ¶53](#)

The complaint alleges that the proposed product labeling for Qilu's Generic Product will serve as instructions for healthcare providers. These instructions are alleged to direct the use of the drug for treating metastatic SCLC and, critically, to direct the specific dose reduction regimens (e.g., from 3.2 mg/m² to 2.6 mg/m²) upon the occurrence of specific adverse events, as claimed in the patents-in-suit. [Compl. ¶57](#) [Compl. ¶72](#) [Compl. ¶87](#) The complaint includes a visual of the chemical structure for lurbinectedin, identifying the active pharmaceutical ingredient central to the dispute. [Compl. ¶26](#)

IV. Analysis of Infringement Allegations

The complaint's theory of infringement is that Defendants' submission of ANDA No. 221419, which includes a proposed product label, constitutes induced infringement under 35 U.S.C. § 271(e)(2)(A) because the label will instruct medical professionals to perform the methods claimed in the '806, '890, and '490 patents.

'806 Patent Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality (from Proposed Label)	Complaint Citation	Patent Citation
A method of treating metastatic small cell lung cancer (SCLC) in a patient with disease progression after platinum-based chemotherapy, said method comprising administering...	The proposed labeling for Qilu's Generic Product will allegedly direct its use for the treatment of patients with metastatic SCLC with disease progression on or after platinum-based chemotherapy.	¶57	col. 109:1-5
...within 35 days of receiving a dose of 3.2 mg/m ² of lurbinectedin by intravenous infusion as a monotherapy, a dose of 2.6 mg/m ² lurbinectedin...	The proposed labeling will allegedly direct administering a reduced dose of 2.6 mg/m ³ following a patient experiencing Grade ≥3 hepatotoxicity at the 3.2 mg/m ² dose, and within 35 days of receiving that	¶57	col. 109:6-12

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality (from Proposed Label)	Complaint Citation	Patent Citation
dose.			
...to a patient having at the time of the administration of the dose of 2.6 mg/m ² of lurbinectedin: a) metastatic SCLC... b) a platelet count of at least 100,000/mm ³ ; c) an absolute neutrophil count of at least 1500 cells/mm ³ ; and d) ≤ Grade 1 hepatotoxicity;	The proposed labeling will allegedly direct that the reduced dose be administered when the patient has a platelet count of at least 100,000/mm ³ , an absolute neutrophil count of at least 1500 cells/mm ³ , and Grade ≤1 hepatotoxicity.	¶57	col. 109:13-21
...wherein the patient previously experienced ≥ Grade 3 hepatotoxicity subsequent to receiving the dose of 3.2 mg/m ² of lurbinectedin.	The proposed labeling will allegedly identify Grade ≥3 hepatotoxicity as an adverse reaction to treatment with 3.2 mg/m ² of lurbinectedin and direct administering a reduced dose as a consequence.	¶57	col. 109:22-25
'890 Patent Infringement Allegations			
Claim Element (from Independent Claim 1)	Alleged Infringing Functionality (from Proposed Label)	Complaint Citation	Patent Citation
A method of treating metastatic small cell lung cancer (SCLC) in a patient with disease progression after platinum-based chemotherapy, said method comprising administering...	The proposed labeling will allegedly direct its use for the treatment of patients with metastatic SCLC with disease progression on or after platinum-based chemotherapy.	¶72	col. 110:1-5
...within 35 days of receiving a dose of 3.2 mg/m ² of lurbinectedin... of 2.6 mg/m ² lurbinectedin...	The proposed labeling will allegedly direct administering a reduced dose of 2.6 mg/m ³ following a patient experiencing Grade 4 neutropenia or any grade febrile neutropenia at the 3.2 mg/m ² dose, and within 35 days of that dose.	¶72	col. 110:6-11
...to the patient having at the time of	The proposed labeling will allegedly	¶73	col.

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality (from Proposed Label)	Complaint Citation	Patent Citation
the administration of the dose of 2.6 mg/m ² of lurbinectedin: a) metastatic SCLC... b) a platelet count of at least 100,000/mm ³ ; and c) an absolute neutrophil count of at least 1500 cells/mm ³ ;	direct that the reduced dose be administered when the patient has a platelet count of at least 100,000/mm ³ and an absolute neutrophil count of at least 1500 cells/mm ³ .		110:12-18
...wherein the patient previously experienced Grade 4 neutropenia or any grade febrile neutropenia subsequent to receiving the dose of 3.2 mg/m ² of lurbinectedin.	The proposed labeling will allegedly identify Grade 4 neutropenia and febrile neutropenia as adverse reactions to treatment with 3.2 mg/m ² ¶72 of lurbinectedin and direct administering a reduced dose as a consequence.		col. 110:19-23

Identified Points of Contention:

Inducement Standard: A central issue will be whether the specific language in the Defendants' proposed label meets the legal standard for inducement. The analysis will focus on whether the label's language actively encourages, recommends, or promotes the patented method, as opposed to merely informing physicians of a possible course of action. The complaint's allegation that the label will "direct" this use will be a key point of contention.

Compl. ¶57 Compl. ¶72 Compl. ¶87

Scope and Specificity: The claims are highly specific, reciting precise dosage levels (3.2 mg/m² and 2.6 mg/m²) and clinical criteria (e.g., "≥ Grade 3 hepatotoxicity," "platelet count of at least 100,000/mm³"). The infringement analysis will hinge on whether the proposed label instructs adherence to every one of these specific limitations. Any ambiguity or difference between the label's text and the claim language could form the basis of a non-infringement defense.

V. Key Claim Terms for Construction

The Term: "previously experienced ≥ Grade 3 hepatotoxicity" '806 Patent, Claim 1, "previously experienced Grade 4 neutropenia or any grade febrile neutropenia" '890 Patent, Claim 1, and "previously experienced Grade 3 thrombocytopenia with bleeding or Grade 4 thrombocytopenia" '490 Patent, Claim 1

Context and Importance: These terms define the specific adverse event that triggers the claimed dose-reduction method. The entire patented process is contingent upon a patient meeting these clinical criteria. The definition of what constitutes each grade of toxicity is therefore fundamental to determining the scope of the claims.

Intrinsic Evidence for Interpretation:

Evidence for a Narrower Interpretation: The specifications explicitly tie the grading of adverse events to a specific, dated standard: "The grade of adverse events, such as neutropenia, thrombocytopenia, hepatotoxicity and other adverse toxicities are as set forth in the current set of criteria set forth in the National Cancer Institute (NCI) CTCAE, version 4.0 (May 28, 2009)." '806 Patent, col. 8:29-34 '890 Patent, col. 8:20-25 '490 Patent, col. 8:20-25 This language may support a narrow construction limited to the definitions within that specific version of the CTCAE guidelines.

Evidence for a Broader Interpretation: A party might argue that a person of ordinary skill in the art would understand the reference to CTCAE v4.0 to encompass clinically equivalent definitions in later versions of the same standard, especially if those standards are universally adopted in clinical practice. The patents also provide specific clinical parameter definitions for some toxicities within the specification itself, such as defining Grade 3 thrombocytopenia as a platelet count less than 50,000/mm³ but greater than or equal to 25,000/mm³. '806 Patent, col. 3:30-33

VI. Other Allegations

Indirect Infringement: The complaint is premised on induced infringement under 35 U.S.C. § 271(b). It alleges that Defendants, by filing an ANDA with a proposed label that will instruct physicians to use lurbinectedin in the patented manner, intend to cause infringement once the generic product is approved and marketed. Compl. ¶56 Compl. ¶71 Compl. ¶86 Knowledge of the patents is alleged based on their listing in the Orange Book and the filing of this lawsuit. Compl. ¶52 Compl. ¶67 Compl. ¶82

Willful Infringement: The complaint alleges that Defendants' infringement will be willful. This allegation is based on Defendants' alleged knowledge of the patents-in-suit, as demonstrated by their Paragraph IV certification and the Orange Book listing, which predates the ANDA filing. Compl. ¶¶52, 62 The complaint further characterizes Defendants' positions on non-infringement and invalidity as being "devoid of an objective good faith basis," seeking a finding that the case is "exceptional" and warrants an award of enhanced damages and attorneys' fees. Compl. ¶63 Compl. ¶78 Compl. ¶93 Compl. Prayer for Relief ¶G

VII. Analyst's Conclusion: Key Questions for the Case

□ A core issue will be one of **inducement**: does the specific language in the Defendants' proposed product label constitute active encouragement to perform the patented methods, or does it merely provide information that leaves the ultimate treatment decision to the physician's independent medical judgment? The outcome may depend on whether the label is found to "direct" or simply "describe" the claimed dose-reduction regimens.

□ A second key question will be one of **literal infringement**: will the court find that the instructions on the proposed label map precisely onto every specific numerical and clinical limitation of the asserted claims? The dispute will likely focus on whether the label requires administration of the exact 2.6 mg/m² dose only after a specified Grade of toxicity is observed and only after the patient's clinical parameters meet the claimed recovery thresholds.

Suite 1520, Newark, NJ 07102-5426 (973) 286-6715 clizza@saul.com Attorneys for
Plaintiffs UNITED STATES DISTRICT COURT DISTRICT OF NEW JERSEY JAZZ
PHARMACEUTICALS IRELAND LIMITED and PHARMA MAR, S.A., Plaintiffs, v. QILU
PHARMACEUTICAL (HAINAN) CO., LTD. and QILU PHARMA, INC., Defendants. Civil
Action No. _____ (Filed Electronically) COMPLAINT FOR PATENT
INFRINGEMENT Plaintiffs Jazz Pharmaceuticals Ireland Limited (“Jazz”) and Pharma Mar, S.A.
 (“Pharma Mar”) (collectively, “Plaintiffs”), for their Complaint against Defendants Qilu
Pharmaceutical (Hainan) Co., Ltd. (“Qilu Ltd.”) and Qilu Pharma, Inc. (“Qilu Inc.”) (collectively,
 “Qilu”), hereby allege as follows: THE PARTIES 1. Plaintiff Jazz is a corporation organized and
existing under the laws of Ireland, having a principal place of business at Fifth Floor, Waterloo
Exchange, Waterloo Road, Dublin, N37 AX84, Ireland. 1 Case 1:26-cv-07840 Document 1 Filed
06/26/26 Page 2 of 298 PageID: 2 2. Plaintiff Pharma Mar is a corporation organized and existing
under the laws of Spain, having a principal place of business at Avenida De Los Reyes, 1, 28770 -
Colmenar Viejo, Madrid, Spain. 3. On information and belief, Defendant Qilu Ltd. is a corporation
organized and existing under the laws of China having a principal place of business at Room A, No.
273, Nanhai Boulevard, State Hi-and-New Tech Park, Haikou, Hainan, 570314, China. 4. On
information and belief, Qilu Ltd., by itself and/or through its affiliates and agents, is in the business
of, inter alia, manufacturing, marketing, importing, preparing, and selling generic pharmaceutical
products that it distributes in the State of New Jersey and throughout the United States. 5. On
information and belief, Defendant Qilu Inc. is a corporation organized and existing under the laws
of Pennsylvania having a principal place of business at 101 Lindenwood Drive, Suite 225, Malvern,
Pennsylvania 19355. 6. On information and belief, Qilu Inc., by itself and/or through its affiliates
and agents, is in the business of, inter alia, manufacturing, marketing, importing, preparing, and
selling generic pharmaceutical products that it distributes in the State of New Jersey and throughout
the United States. 7. On information and belief, Qilu Inc. is a wholly-owned subsidiary and the
United States agent of Qilu Ltd. 8. On information and belief, Qilu Ltd. and Qilu Inc. are agents of
each other with respect to the development, regulatory approval, marketing, sale, and/or distribution
of generic products within the United States. On information and belief, the acts of Qilu Ltd. and
Qilu Inc. 2 Case 1:26-cv-07840 Document 1 Filed 06/26/26 Page 3 of 298 PageID: 3 complained of
herein were done with the cooperation, participation, and assistance of, and at least in part for the
benefit of, each other. 9. On information and belief, Qilu Ltd. and Qilu Inc. have cooperated and
assisted in the preparation and filing of Abbreviated New Drug Application (“ANDA”) No. 221419
 (“Qilu ANDA”) and will be involved in the manufacture, importation, marketing, and/or sale of the
drug that is the subject of the Qilu ANDA, if approved by the United States Food and
Drug Administration (“FDA”). NATURE OF THE ACTION 10. This is a civil action for the
infringement of United States Patent Nos. 12,324,806 (“the ’806 Patent”), 12,433,890 (“the ’890
Patent”), and 12,440,490 (“the ’490 Patent”) (collectively, “the Zepzelca® Patents”) under the
Patent Laws of the United States, 35 U.S.C. § 100 et seq., arising from Qilu’s filing of ANDA No.
221419 with the FDA seeking approval to market a generic version of the pharmaceutical product
Zepzelca® (lurbinectedin) for injection, for intravenous use, 4 mg/vial, before the expiration of the
Zepzelca® Patents covering Zepzelca®’s use. JURISDICTION AND VENUE 11. This Court has
jurisdiction over the subject matter of this action, including Counts I – III against Qilu, pursuant to
28 U.S.C. §§ 1331 and 1338. 12. This Court has personal jurisdiction over Qilu by virtue of the fact
that, inter alia, Qilu has committed the tortious act of patent infringement pursuant to 35 U.S.C. §
271(e)(2)(A) that has led to foreseeable harm and injury to Plaintiffs in the State of New Jersey and
throughout the United States. 13. This Court has personal jurisdiction over Qilu by virtue of the fact

that, on information and belief, Qilu, either directly or through its affiliates, regularly and continuously 3 Case 1:26-cv-07840 Document 1 Filed 06/26/26 Page 4 of 298 PageID: 4 does or solicits business in New Jersey, engages in other persistent courses of conduct in New Jersey, and/or derives substantial revenue from services or things used or consumed in New Jersey, including by selling its pharmaceutical products in New Jersey and, therefore, can reasonably expect to be subject to jurisdiction in the New Jersey courts. On information and belief, Qilu conducts marketing and sales activities in the State of New Jersey, including, but not limited to, distribution, marketing, and sales of pharmaceutical products to New Jersey residents that are continuous and systematic. On information and belief, if the Qilu ANDA is approved, Qilu will market and sell its generic version of Zepzelca® in New Jersey. 14. This Court further has personal jurisdiction over Qilu Ltd. by virtue of the fact that Qilu Ltd. has previously submitted to the jurisdiction of this Court and availed itself of this Court by consenting to this Court's jurisdiction and asserting counterclaims in civil actions initiated in this jurisdiction, including, but not limited to, e.g., Takeda Pharmaceutical Co. Ltd. v. Qilu Pharmaceutical (Hainan) Co., Ltd., No. 2:26-cv-01633 (D.N.J.); Impax Laboratories, LLC v. Qilu Pharmaceutical (Hainan) Co., Ltd., et al., No. 2:25-cv-01962 (D.N.J.); Astellas Pharma Inc., et al. v. Qilu Pharmaceutical (Hainan) Co., Ltd., et al., No. 3:24-cv-08217 (D.N.J.); Janssen Pharmaceuticals, Inc., et al. v. Qilu Pharmaceutical Co., Ltd., et al., No. 2:24-cv-07094 (D.N.J.); and Eli Lilly & Co., et al. v. Qilu Pharmaceutical Co., Ltd., et al., No. 2:24-cv-05847 (D.N.J.). 15. Alternatively, this Court may exercise jurisdiction over Qilu Ltd. pursuant to Federal Rule of Civil Procedure 4(k)(2) because (a) Plaintiffs' claims arise under federal law; (b) Qilu Ltd. is a foreign defendant not subject to general personal jurisdiction in the courts of any state; and (c) Qilu Ltd. has sufficient contacts with the United States as a whole, including, but not limited to, manufacturing and/or selling pharmaceutical products distributed throughout the United 4 Case 1:26-cv-07840 Document 1 Filed 06/26/26 Page 5 of 298 PageID: 5 States, directly or through related entities, such that this Court's exercise of jurisdiction over Qilu Ltd. satisfies due process. 16. This Court has personal jurisdiction over Qilu Inc. On information and belief, Qilu Inc. regularly conducts business in New Jersey and has an established place of business in New Jersey. Qilu Inc. has an active business entity status registered with the New Jersey Department of Treasury under the business entity identification number 0400704255, maintains a business address at 104 Carnegie Center, Suite 212, Princeton, New Jersey 08540, and has a corporate agent for service of process at 820 Bear Tavern Road, West Trenton, New Jersey 08628. 17. This Court also has personal jurisdiction over Qilu Inc. by virtue of the fact that, on information and belief, Qilu Inc. regularly and continuously transacts business within New Jersey, either directly or through its affiliates—including Qilu Healthcare, Inc., a company registered with the State of New Jersey's Department of Health (Reg. No. 5005245) as a drug manufacturer and distributor with a principal place of business at 104 Carnegie Center, Suite 212, Princeton, New Jersey 08540—including by selling pharmaceutical products in New Jersey. 18. This Court further has personal jurisdiction over Qilu Inc. by virtue of the fact that Qilu Inc. has previously submitted to the jurisdiction of this Court and availed itself of this Court by consenting to this Court's jurisdiction and asserting counterclaims in civil actions initiated in this jurisdiction, including, but not limited to, e.g., Impax Laboratories, LLC v. Qilu Pharmaceutical (Hainan) Co., Ltd., et al., No. 2:25-cv-01962 (D.N.J.); Astellas Pharma Inc., et al. v. Qilu Pharmaceutical (Hainan) Co., Ltd., et al., No. 3:24-cv-08217 (D.N.J.); Janssen Pharmaceuticals, Inc., et al. v. Qilu Pharmaceutical Co., Ltd., et al., No. 2:24-cv-07094 (D.N.J.); and Eli Lilly & Co., et al. v. Qilu Pharmaceutical Co., Ltd., et al., No. 2:24-cv-05847 (D.N.J.). 19. Venue is proper in this Judicial District pursuant to 28 U.S.C. §§ 1391 and 1400(b). 5 Case 1:26-cv-07840 Document 1 Filed 06/26/26 Page 6 of 298 PageID: 6 20. Venue is

proper in this Judicial District for Qilu Ltd. because, inter alia, Qilu Ltd. is a foreign corporation not residing in any United States district and may be sued in any judicial district. 21. Venue is proper in this Judicial District for Qilu Inc. On information and belief, Qilu Inc. has an active business entity identification number in the State of New Jersey (0400704255) and maintains a regular and established place of business at 104 Carnegie Center, Suite 212, Princeton, New Jersey 08540. On information and belief, Qilu Inc. has employees in New Jersey. 22. On information and belief, based on Qilu's connections to New Jersey, discoverable information in its possession, custody, or control regarding the Qilu ANDA will likely show that Qilu engaged in activities in New Jersey relevant to the preparation and/or submission of the Qilu ANDA and therefore committed acts of infringement within this Judicial District. 23. Venue is further proper in this Judicial District as to Qilu because, inter alia, Qilu has committed, or aided, abetted, contributed to, and/or participated in the commission of acts of patent infringement that will lead to foreseeable harm and injury to Plaintiffs, which manufacture Zepzelca® for sale and use throughout the United States, including within the State of New Jersey. THE ZEPZELCA® NDA 24. Pharma Mar USA, Inc., a wholly owned subsidiary of Pharma Mar, filed New Drug Application ("NDA") No. 213702 for "Zepzelca® (lurbinectedin) injection, 4 mg lyophilized powder in a single-dose vial." The FDA granted accelerated approval for NDA No. 213702 on June 15, 2020, for the treatment of adult patients with metastatic small cell lung cancer ("SCLC") with disease progression on or after platinum-based chemotherapy. On October 2, 2025, the FDA approved lurbinectedin in combination with atezolizumab or atezolizumab and hyaluronidase-tqjs for the maintenance treatment of adult patients with extensive-stage SCLC whose disease has not 6 Case 1:26-cv-07840 Document 1 Filed 06/26/26 Page 7 of 298 PageID: 7 progressed after first-line induction therapy with atezolizumab or atezolizumab and hyaluronidase- tqjs, carboplatin and etoposide. 25. Pharma Mar USA, Inc. transferred and assigned NDA No. 213702 to Jazz. 26. Lurbinectedin is a compound that can be referred to by any of several chemical names, including (1'R,6R,6aR,7R,13S,14S,16R)-8,14-dihydroxy-6',9-dimethoxy-4,10,23- trimethyl-19-oxo-2',3',4',6,7,9',12,13,14,16-decahydro-6aH-spiro[7,13-azano-6,16- (epithiopropanooxymethano)[1,3]dioxolo[7,8]isoquinolino[3,2-b] [3]benzazocine-20,1'- pyrido[3,4-b]indol]-5-yl acetate, and has the following chemical structure: THE PATENTS-IN-SUIT 27. On June 10, 2025, the '806 Patent, entitled "Method of Treating SCLC and Managing Hepatotoxicity," was duly and legally issued to Pharma Mar. A true and correct copy of the '806 Patent is attached hereto as Exhibit A. 28. The '806 Patent claims, inter alia, methods of treating metastatic SCLC in patients with disease progression after platinum-based chemotherapy, said method comprising administering, within 35 days of receiving a dose of 3.2 mg/m² of lurbinectedin by intravenous infusion as a monotherapy, a dose of 2.6 mg/m² lurbinectedin by intravenous infusion as a 7 Case 1:26-cv-07840 Document 1 Filed 06/26/26 Page 8 of 298 PageID: 8 monotherapy to certain patients who previously experienced ≥ Grade 3 hepatotoxicity subsequent to receiving the dose of 3.2 mg/m² of lurbinectedin. 29. In accordance with 21 U.S.C. § 355(b)(1) and 21 C.F.R. § 314.53, the '806 Patent is listed in the FDA's Approved Drug Products with Therapeutic Equivalence Evaluations (also known as the "Orange Book") for Zepzelca® for intravenous use, 4 mg/vial. 30. On October 7, 2025, the '890 Patent, entitled "Method of Treating SCLC and Managing Neutropenia," was duly and legally issued to Pharma Mar. A true and correct copy of the '890 Patent is attached hereto as Exhibit B. 31. The '890 Patent claims, inter alia, methods of treating metastatic SCLC in patients with disease progression after platinum-based chemotherapy, said method comprising administering, within 35 days of receiving a dose of 3.2 mg/m² of lurbinectedin by intravenous infusion as a monotherapy, a dose of 2.6 mg/m² lurbinectedin by intravenous infusion as a monotherapy to certain patients who previously

experienced Grade 4 neutropenia or any grade febrile neutropenia subsequent to receiving the dose of 3.2 mg/m² of lurbinectedin. 32. In accordance with 21 U.S.C. § 355(b)(1) and 21 C.F.R. § 314.53, the '890 Patent is listed in the FDA's Orange Book for Zepzelca® for intravenous use, 4 mg/vial. 33. On October 14, 2025, the '490 Patent, entitled "Method of Treating SCLC and Managing Thrombocytopenia," was duly and legally issued to Pharma Mar. A true and correct copy of the '490 Patent is attached hereto as Exhibit C. 34. The '490 Patent claims, inter alia, methods of treating metastatic SCLC in patients with disease progression after platinum-based chemotherapy, said method comprising administering, within 35 days of receiving a dose of 3.2 mg/m² of lurbinectedin by intravenous infusion as a monotherapy, a dose of 2.6 mg/m² lurbinectedin by intravenous infusion as a 8 Case 1:26-cv-07840 Document 1 Filed 06/26/26 Page 9 of 298 PageID: 9 monotherapy to certain patients who previously experienced Grade 3 thrombocytopenia with bleeding or Grade 4 thrombocytopenia subsequent to receiving the dose of 3.2 mg/m² of lurbinectedin. 35. In accordance with 21 U.S.C. § 355(b)(1) and 21 C.F.R. § 314.53, the '490 Patent is listed in the FDA's Orange Book for Zepzelca® for intravenous use, 4 mg/vial. 36. Pharma Mar owns the Zepzelca® Patents. 37. Pursuant to an agreement, as amended, entered into between Pharma Mar and Jazz, Jazz was granted an exclusive license to the Zepzelca® Patents, with the right to sue for infringement of the Zepzelca® Patents in the United States. Claims for relief – patent infringement 38. By a letter dated May 13, 2026 (the "Qilu Notice Letter"), Qilu informed Plaintiffs that the FDA had received the Qilu ANDA, submitted by Qilu, seeking approval to manufacture, use, and/or sell "lurbinectedin for injection, 4 mg/vial" ("Qilu's Generic Product") prior to the expiration of the Zepzelca® Patents. 39. On information and belief, Qilu submitted the Qilu ANDA to the FDA under § 505(j) of the Federal Food, Drug, and Cosmetic Act ("FDCA"), seeking approval to engage in the commercial manufacture, use, and sale of Qilu's Generic Product as a generic version of Zepzelca®. 40. On information and belief, the Qilu ANDA seeks FDA approval of Qilu's Generic Product for the indication of treatment of adult patients with metastatic SCLC with disease progression on or after platinum-based chemotherapy. 41. The Qilu Notice Letter also advised Plaintiffs that Qilu's ANDA submission includes certifications under 21 U.S.C. § 355(j)(2)(A)(vii)(IV) that, in Qilu's opinion, certain 9 Case 1:26-cv-07840 Document 1 Filed 06/26/26 Page 10 of 298 PageID: 10 claims of the Zepzelca® Patents are invalid, unenforceable, and/or will not be infringed by the commercial manufacture, sale, and/or use of Qilu's Generic Product. 42. The Qilu Notice Letter does not allege non-infringement of any claims of the Zepzelca® Patents. 43. By not identifying non-infringement defenses for any claims of the Zepzelca® Patents, Qilu admits Qilu's Generic Product meets all limitations of those claims. 44. The Qilu Notice Letter does not allege invalidity under 35 U.S.C. § 101 or unenforceability for any claim of the Zepzelca® Patents. 45. By not identifying invalidity defenses under 35 U.S.C. § 101 or unenforceability for any claim of the Zepzelca® Patents, Qilu admits that the Zepzelca® Patents are valid under 35 U.S.C. § 101 and enforceable. 46. There is an actual, real, immediate, and justiciable controversy between Plaintiffs and Qilu regarding the infringement, validity, and enforceability of the Zepzelca® Patents. 47. On information and belief, following FDA approval of the Qilu ANDA, Qilu will act in concert to make, use, offer to sell, or sell Qilu's Generic Product throughout the United States, or import such a generic product into the United States. 48. On information and belief, following FDA approval of the Qilu ANDA, Qilu intends to directly benefit from sales of Qilu's Generic Product. 49. Plaintiffs commenced this action against Qilu within 45 days of receiving the Qilu Notice Letter pursuant to 21 U.S.C. § 355(j)(5)(B)(iii). Count I (Infringement of the '806 Patent) 50. herein. 10 Plaintiffs incorporate each of the preceding paragraphs 1 to 49 as if fully set forth

51. The Qilu Notice Letter indicates Qilu's intent to engage in the commercial manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Qilu's Generic Product prior to expiration of the '806 Patent.

52. Qilu is aware of the '806 Patent, including as demonstrated by the Qilu Notice Letter. Also, on information and belief, Qilu is aware of the '806 Patent by virtue of its listing in the Orange Book since July 2025.

53. The submission of Qilu's ANDA seeking approval to engage in the commercial manufacture, use, offer for sale, or sale of Qilu's Generic Product, prior to the expiration of the '806 Patent, constitutes infringement of one or more claims of the '806 Patent under 35 U.S.C. § 271(e)(2)(A).

54. On information and belief, Qilu intends to engage in the commercial manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Qilu's Generic Product with the proposed labeling immediately and imminently upon final approval of the Qilu ANDA.

55. The '806 Patent claims, inter alia, methods of treating metastatic SCLC using lurbinectedin in patients who have experienced $\geq$ Grade 3 hepatotoxicity subsequent to receiving a dose of 3.2 mg/m² of lurbinectedin. Claim 1 recites:

A method of treating metastatic small cell lung cancer (SCLC) in a patient with disease progression after platinum-based chemotherapy, said method comprising administering, within 35 days of receiving a dose of 3.2 mg/m² of lurbinectedin by intravenous infusion as a monotherapy, a dose of 2.6 mg/m² lurbinectedin by intravenous infusion as a monotherapy to a patient having at the time of the administration of the dose of 2.6 mg/m² of lurbinectedin:

a)

metastatic

SCLC with

disease

progression

after

chemotherapy,

b) a platelet count of at least 100,000/mm³,

c) an absolute neutrophil count of at least 1500 cells/mm³, and

d) $\leq$ Grade 1 hepatotoxicity;

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wherein the patient previously experienced $\geq$ Grade 3 hepatotoxicity subsequent to receiving the dose of 3.2 mg/m² of lurbinectedin.

56. On information and belief, Qilu's manufacture, use, sale, offer for sale, and/or importation into the United States of Qilu's Generic Product prior to the expiration of the '806 Patent, including any applicable exclusivities or extensions, will actively induce infringement of at least Claim 1 of the '806 Patent under 35 U.S.C. § 271(b). Qilu will aid another in the infringement of one or more claims of the '806 Patent.

57. On information and belief, Qilu's Generic Product will have instructions for use that substantially copy the instructions for Zepzelca®, which disclose and encourage the practice of all the elements of one or more claims of the '806 Patent, including at least Claim 1. On information and belief, the proposed labeling for Qilu's Generic Product will direct the use of Qilu's Generic Product for the treatment of patients with metastatic SCLC with disease progression on or after platinum-based chemotherapy. On information and belief, the proposed labeling for Qilu's Generic Product will direct administering Qilu's Generic Product by intravenous infusion as a monotherapy. On information and belief, the proposed labeling for Qilu's Generic Product will identify Grade ≥ 3 hepatotoxicity as an adverse reaction to treatment with 3.2 mg/m² of lurbinectedin. On information and belief, the proposed labeling for Qilu's Generic Product will direct administering a reduced dose of 2.6 mg/m² lurbinectedin following a patient experiencing Grade ≥ 3 hepatotoxicity at the 3.2 mg/m² dose, and within 35 days of receiving a 3.2 mg/m² dose of lurbinectedin. On information and belief, the proposed labeling for Qilu's Generic Product will direct that the reduced dose of 2.6 mg/m² lurbinectedin be administered when the patient has a platelet count of at least 100,000/mm³, an absolute neutrophil count of at least 1500 cells/mm³, and Grade ≤ 1 hepatotoxicity.

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58. On information and belief, Qilu's Generic Product, if approved by the FDA, will be prescribed and administered by intravenous infusion as a monotherapy to patients with metastatic SCLC with disease progression after platinum-based chemotherapy, who experienced Grade ≥ 3 hepatotoxicity subsequent to receiving a dose of 3.2 mg/m² of lurbinectedin and within

35 days of receiving a dose of 3.2 mg/m² of lurbinectedin, at a reduced dose of 2.6 mg/m² lurbinectedin when the patient has a platelet count of at least 100,000/mm³, an absolute neutrophil count of at least 1500 cells/mm³, and Grade $\leq$ 1 hepatotoxicity, which will constitute infringement of one or more claims of the '806 Patent, including at least Claim 1.

59. On information and belief, this directly infringing use will occur with Qilu's specific intent and active encouragement and will be a use that Qilu knows or should know will occur.

60. On information and belief, Qilu copied the claimed invention of the '806 Patent.

61. On information and belief, Qilu will actively induce, encourage, aid, and abet this prescription and administration, with knowledge and specific intent that this use will be in contravention of Plaintiffs' rights under the '806 Patent.

62. On information and belief, Qilu's acts will be performed with knowledge of the '806 Patent and with intent to encourage infringement prior to patent expiry.

63. On information and belief, Qilu's statement of the factual and legal bases for its opinions regarding non-infringement and invalidity of the '806 Patent is devoid of an objective good faith basis in either the facts or the law. This case is exceptional.

64.

Plaintiffs will be substantially and irreparably harmed by the infringing activities of Qilu as described above unless those activities are precluded by this Court. Plaintiffs have no adequate remedy at law.

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Count II

(Infringement of the '890 Patent)

65.

herein.

66. The Qilu Notice Letter indicates Qilu's intent to engage in the commercial manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Qilu's Generic Product prior to expiration of the '890 Patent.

67. Qilu is aware of the '890 Patent, including as demonstrated by the Qilu Notice Letter. Also, on information and belief, Qilu is aware of the '890 Patent by virtue of its listing in the Orange Book since November 2025.

68. The submission of Qilu's ANDA seeking approval to engage in the commercial manufacture, use, offer for sale, or sale of Qilu's Generic Product, prior to the expiration of the '890 Patent, constitutes infringement of one or more claims of the '890 Patent under 35 U.S.C. § 271(e)(2)(A).

69. On information and belief, Qilu intends to engage in the commercial manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Qilu's Generic Product with the proposed labeling immediately and imminently upon final approval of the Qilu ANDA.

70. The '890 Patent claims, inter alia, methods of treating metastatic SCLC using lurbinectedin in patients who have experienced Grade 4 neutropenia or any grade febrile neutropenia subsequent to receiving a dose of 3.2 mg/m² of lurbinectedin. Claim 1 recites: A method of treating metastatic small cell lung cancer (SCLC) in a patient with disease progression after platinum-based chemotherapy, said method comprising administering, within 35 days of receiving a dose of 3.2 mg/m² of lurbinectedin by intravenous infusion as a monotherapy, a dose of 2.6 mg/m² lurbinectedin by intravenous infusion as a monotherapy to a patient having at the time of the administration of the dose of 2.6 mg/m² of lurbinectedin:

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Plaintiffs incorporate each of the preceding paragraphs 1 to 49 as if fully set forth

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a)

metastatic

SCLC with

disease

progression

after

chemotherapy,

b) a platelet count of at least 100,000/mm³,

c) an absolute neutrophil count of at least 1500 cells/mm³, and

wherein the patient previously experienced Grade 4 neutropenia or any grade febrile neutropenia subsequent to receiving the dose of 3.2 mg/m² of lurbinectedin.

71. On information and belief, Qilu's manufacture, use, sale, offer for sale, and/or importation into the United States of Qilu's Generic Product prior to the expiration of the '890

Patent, including any applicable exclusivities or extensions, will actively induce infringement of at least Claim 1 of the '890 Patent under 35 U.S.C. § 271(b). Qilu will aid another in the infringement of one or more claims of the '890 Patent.

72. On information and belief, Qilu's Generic Product will have instructions for use that substantially copy the instructions for Zepzelca®, which disclose and encourage the practice of all the elements of one or more claims of the '890 Patent, including at least Claim 1. On information and belief, the proposed labeling for Qilu's Generic Product will direct the use of Qilu's Generic Product for the treatment of patients with metastatic SCLC with disease progression on or after platinum-based chemotherapy. On information and belief, the proposed labeling for Qilu's Generic Product will direct administering Qilu's Generic Product by intravenous infusion as a monotherapy. On information and belief, the proposed labeling for Qilu's Generic Product will identify Grade 4 neutropenia and febrile neutropenia as adverse reactions to treatment with 3.2 mg/m² of lurbinectedin. On information and belief, the proposed labeling for Qilu's Generic Product will direct administering a reduced dose of 2.6 mg/m² lurbinectedin following a patient experiencing Grade 4 neutropenia or any grade febrile neutropenia at the 3.2 mg/m² dose, and within 35 days of receiving a 3.2 mg/m² dose of lurbinectedin. On information and belief, the proposed labeling for Qilu's Generic Product will direct that the reduced dose of 2.6 mg/m²

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lurbinectedin be administered when the patient has a platelet count of at least 100,000/mm³ and an absolute neutrophil count of at least 1500 cells/mm³.

73. On information and belief, Qilu's Generic Product, if approved by the FDA, will be prescribed and administered by intravenous infusion as a monotherapy to patients with metastatic SCLC with disease progression after platinum-based chemotherapy, who experienced Grade 4 neutropenia or any grade febrile neutropenia subsequent to receiving a dose of 3.2 mg/m² of lurbinectedin and within 35 days of receiving a dose of 3.2 mg/m² of lurbinectedin, at a reduced dose of 2.6 mg/m² lurbinectedin when the patient has a platelet count of at least 100,000/mm³ and an absolute neutrophil count of at least 1500 cells/mm³, which will constitute infringement of one or more claims of the '890 Patent, including at least Claim 1.

74. On information and belief, this directly infringing use will occur with Qilu's specific intent and active encouragement and will be a use that Qilu knows or should know will

occur.

75. On information and belief, Qilu copied the claimed invention of the '890 Patent.

76. On information and belief, Qilu will actively induce, encourage, aid, and abet this prescription and administration, with knowledge and specific intent that this use will be in contravention of Plaintiffs' rights under the '890 Patent.

77. On information and belief, Qilu's acts will be performed with knowledge of the '890 Patent and with intent to encourage infringement prior to patent expiry.

78. On information and belief, Qilu's statement of the factual and legal bases for its opinions regarding non-infringement and invalidity of the '890 Patent is devoid of an objective good faith basis in either the facts or the law. This case is exceptional.

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79.

Plaintiffs will be substantially and irreparably harmed by the infringing activities of Qilu as described above unless those activities are precluded by this Court. Plaintiffs have no adequate remedy at law.

Count III

(Infringement of the '490 Patent)

80.

herein.

81. The Qilu Notice Letter indicates Qilu's intent to engage in the commercial manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Qilu's Generic Product prior to expiration of the '490 Patent.

82. Qilu is aware of the '490 Patent, including as demonstrated by the Qilu Notice Letter. Also, on information and belief, Qilu is aware of the '490 Patent by virtue of its listing in the Orange Book since November 2025.

83. The submission of Qilu's ANDA seeking approval to engage in the commercial manufacture, use, offer for sale, or sale of Qilu's Generic Product, prior to the expiration of the '490 Patent, constitutes infringement of one or more claims of the '490 Patent under 35 U.S.C. § 271(e)(2)(A).

84. On information and belief, Qilu intends to engage in the commercial manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Qilu's Generic Product with

the proposed labeling immediately and imminently upon final approval of the Qilu ANDA.

85. The '490 Patent claims, inter alia, methods of treating metastatic SCLC using lurbinectedin in patients who have experienced Grade 3 thrombocytopenia with bleeding or Grade 4 thrombocytopenia subsequent to receiving a dose of 3.2 mg/m² of lurbinectedin. Claim 1 recites:
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Plaintiffs incorporate each of the preceding paragraphs 1 to 49 as if fully set forth

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A method of treating metastatic small cell lung cancer (SCLC) in a patient with disease progression after platinum-based chemotherapy, said method comprising administering, within 35 days of receiving a dose of 3.2 mg/m² of lurbinectedin by intravenous infusion as a monotherapy, a dose of 2.6 mg/m² lurbinectedin by intravenous infusion as a monotherapy to a patient having at the time of the administration of the dose of 2.6 mg/m² of lurbinectedin:

a)

metastatic

SCLC with

disease

progression

after

chemotherapy,

b) a platelet count of at least 100,000/mm³,

c) an absolute neutrophil count of at least 1500 cells/mm³;

wherein the patient previously experienced Grade 3 thrombocytopenia with bleeding or Grade 4 thrombocytopenia subsequent to receiving the dose of 3.2 mg/m² of lurbinectedin.

86. On information and belief, Qilu's manufacture, use, sale, offer for sale, and/or importation into the United States of Qilu's Generic Product prior to the expiration of the '490 Patent, including any applicable exclusivities or extensions, will actively induce infringement of at least Claim 1 of the '490 Patent under 35 U.S.C. § 271(b). Qilu will aid another in the infringement of one or more claims of the '490 Patent.

87. On information and belief, Qilu's Generic Product will have instructions for use that substantially copy the instructions for Zepzelca®, which disclose and encourage the practice

of all the elements of one or more claims of the '490 Patent, including at least Claim 1. On information and belief, the proposed labeling for Qilu's Generic Product will direct the use of Qilu's Generic Product for the treatment of patients with metastatic SCLC with disease progression on or after platinum-based chemotherapy. On information and belief, the proposed labeling for Qilu's Generic Product will direct administering Qilu's Generic Product by intravenous infusion as a monotherapy. On information and belief, the proposed labeling for Qilu's Generic Product will identify Grade 3 thrombocytopenia with bleeding and Grade 4 thrombocytopenia as adverse reactions to treatment with 3.2 mg/m² of lurbinectedin. On information and belief, the proposed labeling for Qilu's Generic Product will direct administering a reduced dose of 2.6 mg/m²

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lurbinectedin following a patient experiencing Grade 3 thrombocytopenia with bleeding or Grade 4 thrombocytopenia at the 3.2 mg/m² dose, and within 35 days of receiving a 3.2 mg/m² dose of lurbinectedin. On information and belief, the proposed labeling for Qilu's Generic Product will direct that the reduced dose of 2.6 mg/m² lurbinectedin be administered when the patient has a platelet count of at least 100,000/mm³ and an absolute neutrophil count of at least 1500 cells/mm³.

88. On information and belief, Qilu's Generic Product, if approved by the FDA, will be prescribed and administered by intravenous infusion as a monotherapy to patients with metastatic SCLC with disease progression after platinum-based chemotherapy, who experienced Grade 3 thrombocytopenia with bleeding or Grade 4 thrombocytopenia subsequent to receiving a dose of 3.2 mg/m² of lurbinectedin and within 35 days of receiving a dose of 3.2 mg/m² of lurbinectedin, at a reduced dose of 2.6 mg/m² lurbinectedin when the patient has a platelet count of at least 100,000/mm³ and an absolute neutrophil count of at least 1500 cells/mm³, which will constitute infringement of one or more claims of the '490 Patent, including at least Claim 1.

89. On information and belief, this directly infringing use will occur with Qilu's specific intent and active encouragement and will be a use that Qilu knows or should know will occur.

90. On information and belief, Qilu copied the claimed invention of the '490 Patent.

91. On information and belief, Qilu will actively induce, encourage, aid, and abet this prescription and administration, with knowledge and specific intent that this use will be in contravention of Plaintiffs' rights under the '490 Patent.

92. On information and belief, Qilu's acts will be performed with knowledge of the '490 Patent and with intent to encourage infringement prior to patent expiry.

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93. On information and belief, Qilu's statement of the factual and legal bases for its opinions regarding non-infringement and invalidity of the '490 Patent is devoid of an objective good faith basis in either the facts or the law. This case is exceptional.

94.

Plaintiffs will be substantially and irreparably harmed by the infringing activities of Qilu as described above unless those activities are precluded by this Court. Plaintiffs have no adequate remedy at law.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs respectfully request the following relief:

A. A Judgment that Qilu infringed one or more claims of United States Patent

Nos. 12,324,806, 12,433,890, and 12,440,490 by its submission of ANDA No. 221419 seeking FDA approval for the commercial manufacture, use, offer for sale, sale, and/or importation of Qilu's Generic Product before the expiration of the '806, '890, and '490 Patents under 35 U.S.C. § 271(e)(2)(A);

B. A Judgment that Qilu's commercial manufacture, use, offer for sale, sale in, and/or importation into the United States of Qilu's Generic Product will infringe one or more claims of United States Patent Nos. 12,324,806, 12,433,890, and 12,440,490 under 35 U.S.C. § 271(b);

C. A permanent injunction under 35 U.S.C. §§ 271(e)(4)(B) and/or 283 restraining and enjoining Qilu, and its officers, agents, servants, and employees, and those persons in active concert or participation with any of them, from engaging in the commercial manufacture, use, offer for sale, sale in, and/or importation into the United States of Qilu's Generic Product prior to the expiration date of United States Patent Nos. 12,324,806, 12,433,890, and 12,440,490, inclusive of any extensions;

D.

An Order under 35 U.S.C. § 271(e)(4)(A) that the effective date of any FDA approval of ANDA No. 221419 under Section 505(j) of the Federal Food, Drug, and Cosmetic Act

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(21 U.S.C. § 355(j)) shall be a date that is not earlier than the expiration date of United States Patent Nos. 12,324,806, 12,433,890, and 12,440,490, inclusive of any extensions;

E. A Judgment that the claims of United States Patent Nos. 12,324,806, 12,433,890, and 12,440,490 are valid and enforceable;

F.

If Qilu engages in the commercial manufacture, use, importation, offer for sale, and/or sale of Qilu's Generic Product prior to expiration of the '806, '890, and '490 Patents, a Judgment awarding damages to Plaintiffs resulting from such infringement, with all costs and interest;

G. A Declaration that this case is "exceptional" under 35 U.S.C. § 285 and an award of attorneys' fees;

H.

An award of costs and expenses in this action; and

I.

Such other and further relief as the Court may deem just and proper.

Dated: June 26, 2026

s/ Charles M. Lizza

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LOCAL CIVIL RULES 11.2 AND 40.1 CERTIFICATION

Pursuant to Local Civil Rules 11.2 and 40.1, I hereby certify that this matter is related to Jazz Pharmaceuticals Ireland Limited, et al v. Sandoz, Inc., et al, No. 3:24-cv-09110 (RK)(RLS) (D.N.J.) because it involves the same plaintiffs, some of the same patents, and other defendants seeking to make generic versions of the same branded pharmaceutical product.

I further certify that, to the best of my knowledge, the matter in controversy is not the subject of any other action pending in any court or of any pending arbitration or administrative proceeding.

Dated: June 26, 2026

s/ Charles M. Lizza

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